

PROMOTIONAL FUNDING AND VINYL PRESSING AGREEMENT

This Promotional Funding and Vinyl Pressing Agreement (this “**Agreement**”) is made and entered into as of the _____ day of _____, 2026 (the “**Effective Date**”), by and among the following parties:

Bobby Greenleaf, an individual (“Greenleaf”), and **Adam DeGross**, an individual (“DeGross”), each of the foregoing referred to individually as an “Investor” and collectively as the “Investors”; and

Daniel Gardner, an individual doing business as “**Dan Spencer**” (the “Artist”).

The Investors and the Artist are referred to herein individually as a “Party” and collectively as the “Parties.”

RECITALS

WHEREAS, the Artist is a recording artist who has created, or is in the process of creating, a musical sound recording and album titled “*That’s Your Big Boy*” (the “Album”);

WHEREAS, the Artist desires funding for the marketing, promotion, and vinyl pressing of the Album; and

WHEREAS, the Investors desire to provide such funding to the Artist upon the terms and conditions set forth in this Agreement, including the Parties’ shared understanding regarding the speculative nature of the funding and the limited expectation of repayment described herein;

NOW, THEREFORE, in consideration of the mutual covenants and promises set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. FUNDING CONTRIBUTION

1.1 Contribution. The Investors, jointly, agree to pay to the Artist the total sum of Ten Thousand and 00/100 United States Dollars (\$10,000.00) (the “Funds”).

1.2 Payment. The Funds shall be paid to the Artist in a single lump sum on or before _____, 2026, by _____ (e.g., check, wire transfer, or other mutually agreed method). Unless otherwise agreed in writing, Greenleaf and DeGross shall each be responsible for one-half (1/2) of the Funds.

2. USE OF FUNDS

2.1 Purpose. The Artist shall use the Funds solely and exclusively for the marketing, promotion, and pressing of vinyl records for the Album, including reasonably related costs and expenses incurred in furtherance of the foregoing (collectively, the “Approved Purposes”).

2.2 Discretion. The Artist shall have reasonable discretion over the allocation and application of the Funds among the Approved Purposes and over the creative, marketing, and promotional decisions relating to the Album.

3. NATURE OF FUNDING; LIMITED EXPECTATION OF RECOUPMENT

3.1 Speculative Contribution. The Investors acknowledge, understand, and agree that the Funds are provided on a speculative basis and that the outcome of the Album’s marketing, promotion, and release is inherently uncertain. Accordingly, the Investors shall *not* expect, and shall not be entitled to demand, full recoupment or repayment of the Funds, except upon the occurrence of one or both of the conditions set forth in Section 3.2 below.

3.2 Recoupment Conditions. The Investors’ expectation of, and potential entitlement to, full recoupment of the Funds shall arise only upon the occurrence of one or both of the following:

- a. the Album achieves exceptional commercial success (i.e., becomes “wildly financially successful”), such that the revenues generated by the Album are sufficient to provide for such recoupment; and/or
- b. a record label or comparable entity possessing substantial financial backing becomes involved with the Artist and desires to participate in the marketing, optics, and brand of Dan Spencer on a going-forward basis, in which event the terms of any such involvement, together with any recoupment, repayment, compensation, or other consideration owed to the Investors, shall be negotiated and determined by the Parties in good faith at a later time.

3.3 No Guarantee. Except as expressly provided in Section 3.2, nothing in this Agreement shall be construed as a guarantee, promise, or representation that the Investors will recoup, recover, or be repaid all or any portion of the Funds. In the absence of the conditions described in Section 3.2, the Investors shall have no right to repayment of the Funds, and the Funds shall be deemed a contribution toward the Approved Purposes.

4. RELATIONSHIP OF THE PARTIES

4.1 Independent Parties. Nothing in this Agreement shall be deemed to create a partnership, joint venture, employment, agency, or fiduciary relationship between or among the Parties. Except as the

Parties may expressly agree in a separate written instrument, this Agreement does not convey to the Investors any ownership interest in the Album, in the master recordings, in any copyrights or intellectual property, or in the Artist's business, brand, or name.

4.2 Future Arrangements. Any involvement of a record label or comparable entity as described in Section 3.2(b), and any resulting rights, roles, compensation, or brand participation of the Investors, shall be the subject of a separate written agreement negotiated by the Parties at the relevant time. This Agreement does not obligate the Artist to accept any particular label, offer, or arrangement.

5. REPRESENTATIONS AND ACKNOWLEDGMENTS

5.1 Authority. Each Party represents that such Party has the full right, power, and authority to enter into and perform this Agreement.

5.2 Investor Acknowledgment. Each Investor acknowledges that such Investor has had the opportunity to review this Agreement, to seek independent legal and financial advice, and understands and accepts the speculative nature of the Funds and the limited expectation of recoupment set forth in Section 3.

6. GENERAL PROVISIONS

6.1 Entire Agreement. This Agreement constitutes the entire agreement among the Parties with respect to its subject matter and supersedes all prior or contemporaneous understandings, whether written or oral.

6.2 Amendment. This Agreement may be amended or modified only by a written instrument signed by all Parties.

6.3 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Tennessee, without regard to its conflict-of-laws principles.

6.4 Severability. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

6.5 Counterparts. This Agreement may be executed in counterparts, including by electronic signature or transmission, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

INVESTOR:

Bobby Greenleaf

Date: _____

INVESTOR:

Adam DeGross

Date: _____

ARTIST:

Daniel Gardner, d/b/a Dan Spencer

Date: _____